2013 MAY -6 AM 9:27

Bernard J. Youngblood
Wayne County Register of Deeds
May 06, 2013 09:27 AM
Inst:2013278323 CTF Pages:8
Liber:50781 Page:918

A.S.K. SERVICES, INC.

CERTIFICATE OF TRUST AND EXISTENCE OF AUTHORITY

The undersigned, being first duly sworn, is executing this Certificate of Trust as the Settlor ( ), the Successor Trustee (x) or the Attorney for the Seller of the Trust ( ) and says that:

1. **TITLE OF TRUST**: The name of the Trust is: The Raymond J. Samelak Revocable Family Trust Agreement

2. **DATE OF TRUST**: The date of the Trust is: August 5, 2011

3. **AMENDMENT(S) TO TRUST**: The Trust HAS ( ) HAS NOT (x) been amended. If the Trust has been amended the title and date is:

4. **SETTLOR/TRUSTEE(S):** The name and address of each Settlor/Trustee is:
Name: Raymond J. Samelak, deceased
Address:20442 Charest, Detroit, MI 48234
Name:
Address:

5. **SUCCESSOR TRUSTEE (s):** The name and address of each Successor Trustee is:
Name: Duane R. Samelak
Address:
Name: Richard Gogolewski
Address:

6. **CURRENT TRUSTEE (S):** The name and address of each Trustee currently acting for the Trust is:
Name: Raymond J. Samelak, deceased
Address: 20442 Charest, Detroit, MI 48234
Name:
Address:

7. **LEGAL DESCRIPTION:** The Legal Description of the real property affected by this Certificate of Trust is described on attached - **Exhibit A.**

8. **TRUSTEE'S POWER OVER REAL PROPERY**: The Trustee has power to sell, mortgage, lease, transfer, exchange, convert or otherwise dispose of the Trust

13141962 Sta

Sterling Title Agency
13442 Canal Road
Sterling Heights, MI 48313

Property. Trustee has the power to execute all necessary documents. A verbatim reproduction of each power is attached to this Certificate of Trust – **Exhibit B.**

9. **GOVERNING LAW**: The Trust Agreement, and any amendment, is governed by the laws of the State of Michigan.
10. **FULL FORCE AND EFFECT:** The Trust Agreement, and any amendment, remains in full force and effect.
11. **TERMINATION:** This certificate shall remain in full force and effect unless an instrument amending or revoking the Trust Agreement or Certificate of Trust in authority is recorded in the same office in which this Certificate is recorded as provided in MCLA 585.431 (Section 5).
12. **RELIANCE**: This Certificate of Trust correctly recites the current status of the Trust Agreement and is made in accordance with the provisions of MCLA 585.431 et seq. in order to induce Sterling Title Agency to issue a Title Insurance Policy insuring an interest in the real property affected by the Trust Agreement.

THIS IS A LEGAL DOCUMENT AND AN ATTORNEY SHOULD BE CONSULTED.

By: The Raymond J. Samelak Revocable Family Trust Agreement Dated August 5, 2011

Duane R. Samelak, Successor Co-Trustee

Richard Gogolewski, Successor Co-Trustee

State of Michigan
County of Oakland

The foregoing instrument was acknowledged before me this 11 day of April, 2013, by The Raymond J. Samelak Revocable Family Trust Agreement dated August 5, 2011 by: Duane R. Samelak, Successor Co-Trustee and Richard Gogolewski, Successor Co-Trustee

MICHAEL SAMELAK
Notary Public - Michigan
Oakland County
My Commission Expires Oct 14, 2019
Acting in the County of Oakland

Michael Samelak
Notary Public
Oakland County, Michigan

Michael Samelak
Oakland

Acting in Oakland County
My Commission Expires:

Oakland

Drafted by and return to: William F. Branch, 29065 Schoenherr, Warren, MI 48088

Legal Description
Exhibit A

Land situated in the City of Detroit, County of Wayne, State of Michigan

Lot 114 and the West 8 feet of adjacent vacated alley, SEYMOUR & TROESTER'S CLAIRMOUNT PARK SUBDIVISION, as recorded in Liber 52, page 43, of Plats, Wayne County Records.

Tax ID# Ward 13 Item no. 023589

ARTICLE IV
POWERS OF TRUSTEE

Section 1. Trustee's Powers

Except as otherwise provided herein, Trustee shall hold, manage, administer, invest, reinvest and otherwise deal with the trust estate and shall have the following powers and authority in addition to any other rights, powers, authority and privileges otherwise granted by this Trust Agreement or by statute or rule of law, all of which powers and authority shall be broadly construed and exercised only in a fiduciary capacity:

(a) To accept and retain in the form received and for such time as Trustee may deem advisable all property or undivided interests in property received or acquired as part of the trust estate, including Trustee's own securities, without regard to any risk, lack of diversification or nonproductivity, and whether or not such property may be regarded or prescribed by any statute, rule of law or otherwise as being a proper investment for trustees.

(b) To invest and reinvest all or any assets of the trust estate, including the proceeds from the disposition thereof, in any property, real, personal or mixed, and any undivided interests in property, wherever located, including but not limited to any and all savings or other cash accounts or funds, corporate obligations and common and preferred stocks, options (covered or uncovered) to buy or sell stocks or other corporate obligations or other property, interests in partnerships (either limited or general), real property (including oil, gas or other mineral properties, leases, royalties, interests or rights for exploration and removal of such minerals, or any portion or interest thereof), interests in common trust funds or mutual funds, insurance contracts on the life of any beneficiary or annuity contracts for any beneficiary, as Trustee deems advisable including, without intending to be comprehensive or to preclude any investments not listed, investments in commodities, precious metals, works of art, antiques, coins and currency, jewelry, stamps, books, heavy equipment, breeding animals, whether or not such property may be regarded or prescribed by any statute, rule of law or other wise as being a proper investment for trustees and whether or not such property is productive at the time of investment; to receive the monies, interest, dividends, profits and other income arising from such property; to establish, maintain and terminate brokerage accounts for the investment and reinvestment of any such property; and to consolidate assets of the separate trusts created hereunder for the purpose of any such investment and reinvestment and, in such event, the division into shares of each common investment for each trust need only be made on Trustee's books of account.

(c) To hold, improve, develop, plat, subdivide, construct, manage, repair, maintain, preserve, demolish, operate, lease (as lessor or lessee, for any length of time irrespective of the term of the trusts created hereunder, with or without any option for renewal, and for any purpose), mortgage, pledge, grant security interests in, partition, create restrictions, easements and other servitudes, dedicate to public use (with or without consideration), option, sell, exchange, convey, transfer, assign, surrender, abandon or otherwise dispose of or deal with any property, real or personal, constituting a part of the trust estate, or any part thereof or interest therein, including

reinvestments, at such time or times and upon such terms and conditions (including dispositions for cash and/or deferred payments), by private contract or public auction, with or without security, as in the sole and absolute discretion of Trustee may be deemed advisable.

(d) To keep all or any portion of the trust estate in cash and uninvested for such period or periods of time as Trustee may, from time to time, deem to be in the best interest of the trusts and the beneficiaries under this Trust Agreement, without liability for interest or any loss of income by reason thereof.

(e) To vote, in person or by proxy, on all matters with respect to any and all stock, securities, interests in joint ventures or general or limited partnerships or other investments of the trust estate at all meetings of shareholders or others owners; to oppose, consent to, abstain from or otherwise participate in any voting trust, pooling agreement, foreclosure, reorganization, consolidation, merger, liquidation, financing, refinancing, or sale of assets of any corporation, joint venture, partnership or other organization whose stock, securities or other interests shall be a part of the trust estate, and in connection therewith to deposit stock, securities or other property with any committee and to delegate discretionary power to such committee, to accept and retain new stock, securities or other property with any committee and to delegate discretionary power to such committee, to accept and retain new stock, securities or other property received by Trustee pursuant to any plan or agreement, to exercise all conversion, subscription, voting, and other rights, of whatever nature pertaining to such stock, securities, other interests or property, and to pay any contributions, charges, assessments, or other amounts as Trustee may deem advisable in connection therewith; and in general to exercise all the rights, powers and privileges of an owner with respect to any stock, securities, interests in joint ventures or general or limited partnerships or other investments of the trust estate.

(f) To exercise any right, option or privilege to convert bonds, notes, debentures, stocks or other securities of the trust estate into other bonds, notes, debentures, stocks or other securities; to exercise any right or privilege to subscribe for additional or other bonds, notes, debentures, stocks or other securities; to make such conversion or subscription, to make payments thereof, and to advance or borrow money for the purpose of exercising such option, privilege or right; and to retain such bonds, notes, debentures, stocks and other securities so acquired as investments of the trust estate whether or not the same may be regarded or prescribed by any statute, rule of law or otherwise as being proper investments for trustees.

(g) To borrow or raise money on behalf of the trusts created hereunder (including the purchase of stock, securities or other property on margin) or to advance money to such trusts for the purposes of the trusts created hereunder (including, without limitation, for the protection of the trust assets or for expenses, losses or liabilities sustained in the administration of such trusts), in such amounts, for such terms (whether or not extending beyond the term of such trusts) and upon such conditions as Trustee shall deem advisable; to execute as Trustee promissory notes or other obligations for any amounts borrowed or advanced; to secure the repayment thereof by the mortgage, assignment, pledge, hypothecation, or grant of any other security interests of all or any part of the assets of the trust estate; and to guaranty (on an unsecured or secured basis) the payment (in full or in part) of any borrowing; and no person lending money to Trustee shall be bound to see to the application of the money lent or to inquire into the validity, expediency or propriety of any

such borrowing.

(h) To make, execute, acknowledge, and deliver any and all bills of sale, deeds, leases, mortgages, deeds of trusts, assignments, conveyances, agreements, contracts, waivers, ratification, confirmations, releases, and any and all other instruments that may be necessary or appropriate to carry out the powers granted herein or any disposition whatsoever of any property of the trust estate. Any purchasers and other persons who loan or otherwise pay any monies to Trustee shall be exempt from all responsibility with respect to the application of the same and from the necessity of inquiring into the regularity, validity or propriety of any borrowing or any disposition made or purported to be made under this Trust Agreement or pursuant to any powers contained in this Trust Agreement.

(i) To insure the assets of the trust estate against any damage or loss whatsoever and insure Trustee in the capacity of Trustee against liability with respect to third persons, to extend, renew, modify, consolidate, settle, compromise or submit to arbitration any claims, debts, charges, expenses, causes of action or damages due or owing to or from the trust estate; to commence or defend suits and legal and administrative proceedings; and to represent the trusts created hereunder in all suits and legal and administrative proceedings.

(j) Except as otherwise expressly provided under this Trust Agreement, to determine in each and every case what is income and what is principal; to allocate and apportion all receipts and disbursements (or portions thereof) between income and principal, including but not limited to expenses incurred by Trustee in the administration or protection of this trust (such as compensation of Trustee), property taxes, assessments, fees, and charges, all of which shall be a charge upon the trust estate and shall be paid by Trustee prior to the final distribution of the trust property; to allocate and apportion, as between income and principal, depreciation, amortization, depletion, and similar charges in such amounts and in such manner as shall be deemed fair and equitable by Trustee; to charge any administration expense, including but not limited to any income tax liability attributable to the sale of an appreciated asset or any expense incurred in determining the adjusted basis for income tax purposes of any asset, against any trust or portion thereof or any specific distribution as Trustee deems fair and equitable; and the determination of Trustee with respect to all such matters shall be conclusive upon all persons interested in the trusts created hereunder.

(k) To employ attorneys, accountants, investment advisors, brokers, investment and mortgage bankers and other counsel to assist and advise in the investment, management, preservation and administration of the trust estate, and to pay reasonable compensation therefor, which compensation shall be charged against income and/or principal in such manner as Trustee shall deem just and equitable. Trustee shall not be liable for any neglect, omission, or default of any such counsel provided such counsel was selected and retained with reasonable care.

(l) If, at any time, there is no corporate Trustee hereunder, to employ any bank, savings and loan association, trust company or brokerage firm as custodian or agent for convenience of administration, to deposit any property at any time held in trust with such bank, savings and loan association, trust company or brokerage firm and to cause such property to be registered in its name or that of its nominee without disclosure of the trust, and to authorize such

bank, savings and loan association, trust company or brokerage firm to collect and receive the income therefrom and to make payments out of principal or income of the custodian fees and charges; and , if there is a corporate Trustee hereunder, such Trustee shall have the entire care and custody of all assets of the trust estate and shall keep said assets with the same care as given to other property held by it in a fiduciary capacity.

(m) To hold any securities or other property, in the name of Trustee or in the name of a nominee relationship, and to hold any such property in bearer form; provided, however, that the books and records of Trustee shall at all times show that all such investments are part of the trust estate, and that notwithstanding anything contained herein to the contrary, Trustee shall be liable for the acts or omissions of such nominee or nominees as if such acts or omissions constituted Trustee's own acts or omissions.

(n) To construe this Trust Agreement, and any action taken relying upon any such construction shall fully protect Trustee, even though it may be subsequently determined that such construction was erroneous. In any proceeding involving the construction, operation or other legal effect of this Trust Agreement, the then living beneficiaries shall represent all unknown and undetermined beneficiaries, and any order, judgment or decree rendered in such proceeding shall be binding, not only upon such persons, but also upon all unknown and undetermined beneficiaries.

(o) To purchase at fair market value and hold any asset or assets from Settlor's estate from and between any separate trusts hereunder and from the estate and/or revocable trust or any deceased beneficiary of any trust hereunder (and their spouses), and to make loans to any such persons, with or without interest and/or security, at any time and from time to time for any purpose. The propriety of any such purchase or loan, the amount, type or class of assets purchased or loans made, and the determination of fair market value shall be solely within the discretion of Trustee; and Trustee shall not incur any responsibility or liability as a result of any such purchase or loan, whether or not any such asset or loan constitutes an investment which may be legally made by Trustee under any statute, rule of law or otherwise.

(p) To make or exercise any election, option or choice afforded Trustee under the Internal Revenue Code or any other tax related statute, law or ordinance which, in Trustee's sole and absolute discretion, Trustee believes to be in the best interests of the trusts and beneficiaries hereunder. Trustee shall not be accountable or responsible to any person for the manner in which Trustee exercises this provision (including any decision to not incur the expense of any detailed analysis of alternate choices), and no adjustment between any trusts or beneficiaries shall be required to compensate for differences in tax benefits or costs accruing as a result of any such action or failure to act.

(q) To make any distribution from the trust estate in cash or in kind, or mixed, to take into account the income tax bases of such assets as Trustee shall determine, and to allot specific securities or other property or any undivided interest therein to any beneficiary; and for the purpose of any such distribution or allotment, the judgment of Trustee concerning the propriety thereof and/or the relative value thereof shall be final and conclusive upon all interested persons, and no adjustment between any individual or group of trusts or beneficiaries shall be required to compensate for differences in income tax basis of distributed assets or property or in tax benefits or

costs resulting from any such distribution or allotment.

(r) To budget the estimated annual income and expenses of the trusts hereunder in such manner as to equalize, as far as practical, periodic income payments, if any, to the beneficiaries of such trusts.

(s) To make any distribution or distributions hereunder, whether principal or income, by applying such amounts to or for the benefit of any beneficiary (adult or minor) for such person's care, comfort, support, maintenance and education, including but not limited to payments to any school, hospital or other institution in which such person is in attendance, committed or maintained (however, no such distribution shall be made for the benefit of any beneficiary if such distribution is in payment of any legal obligation of any other person to support such beneficiary); to make any such distributions to or for any minor or incapacitated beneficiary directly to such beneficiary, to the duly appointed legal guardian of or conservator for such beneficiary or to any relative or other person having actual care and custody of such beneficiary; and, in the case of any minor beneficiary, to make any such distributions to a custodian for such minor under any Uniform Gifts to Minors Act. In any of the foregoing events, Trustee shall be under no duty to audit the use made of any such distribution.

(t) To purchase, acquire and retain any general or limited partnership interests, any interests in joint ventures or similar entities, or any capital stock, bonds, debentures, or other securities in any corporations, whether or not wholly or partially owned or controlled by Settlor; to engage in any actions or transactions with or on behalf of such business enterprises as Trustee is permitted to engage in with or on behalf of the trust estate (including, without limitation, guarantying any obligations of such business enterprises); to vote for Trustee in any election for general or managing partner in any such partnerships or for directors and officers of any such corporations at such compensation and on such other terms and conditions as the requisite vote of such partnership or the boards of directors of such corporation shall determine; and to manage or be employed or otherwise conduct such business enterprises.

(u) To exercise all of the foregoing powers and authority notwithstanding any contemporaneous interest or interests of Trustee in Trustee's individual or fiduciary capacity, or of any employee of Trustee, as owner, partner, shareholder, director, officer, employee, creditor or otherwise, in any property, real or personal, or in any business entity in which the trust estate is also interested or in which Trustee shall determine to invest all or any part of the trust estate, or in any firm or corporation which Trustee may employ to counsel, assist and advise in the management and administration of the trusts created hereunder; and in any such event, Trustee shall not be held to any higher standard of duty than if such Trustee or employee were not so interested.

(v) To do all other acts and things whatsoever that an owner of any such property could do and perform in his own right as Trustee shall deem to be for the best interests of the trusts hereunder and the beneficiaries thereof.

Section 2. Action by Trustee

If at any time any action or decision affecting the administration or distribution of